

2:00 PM

LINE 2

21-CIV-04741

MICHAEL D. LIBERTY VS. BANK OF THE WEST, ET AL

MICHAEL D. LIBERTY
RONALD O'CONNELL

PRO/PER
EDWARD S. ZUSMAN

KRISTINA HILLHOUSE'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

TENTATIVE RULING:

Defendant Kristina Hillhouse's Motion for Summary Judgment is GRANTED pursuant to Code Civ. Proc. Section 437c, and the alternative Motion for Summary Adjudication is accordingly moot for the reasons provided below.

Plaintiff requests judicial notice of the Order filed January 11, 2024 in this action, sustaining-in-part and overruling-in-part Defendant BMO Bank's Demurrer to Plaintiff's SAC. As part of the Court file in this case, the Order may be referenced without judicial notice being taken. However, to the extent necessary, the request is granted pursuant Evidence Code section 452(d).

Defendant Kristina Hillhouse requests judicial notice of documents filed in this action or in the family law action Case No. 17-FAM-00584. Plaintiff objects that the documents are irrelevant and are hearsay. Again, to the extent that it is even necessary, the documents are properly subject to judicial notice as documents of a court of this state, and the request is granted pursuant Evidence Code section 452(d), except to the extent that they are offered for the truth of any hearsay statements contained therein.

Evidentiary Objections

All Plaintiff's objections to Defendant's evidence, many of which border on frivolous, are OVERRULED.

All Defendant's objections to Plaintiff's Declaration in support of the Opposition are SUSTAINED on some or all of the grounds raised by Plaintiff, including but not limited to lack of foundation and speculation, except as to Objection No.'s 11-13, which are OVERRULED in part. While the "evidence" objected to in 11-13 is of questionable relevance and raises hearsay issues, Mr. Liberty can, at least in the abstract, testify about what Sarah Hillhouse told him.

Background

According to the operative Fourth Amended Complaint, Plaintiff is an attorney who employed Defendant Sarah Hillhouse (his onetime girlfriend) as an independent contractor, a bookkeeper. Defendant Kristina Hillhouse is Sarah Hillhouse's daughter, who served as Plaintiff's assistant temporarily. Plaintiff alleges that Defendants Hillhouse embezzled approximately \$800,000 from Plaintiff's retirement account, or "defined benefit plan," using secret bank transfers, and also embezzled from Plaintiff's business checking account. Defendant Bank of the West was a banking enterprise in San Mateo which is alleged to have failed to prevent the forgeries, embezzlements, and wrongful withdrawals, as well as misrepresenting to Plaintiff that he would be notified each time a withdrawal was made from his defined benefit plan. Defendant Pencomp Inc., ("Pencomp") whose president is Defendant Ronald O'Connell, is a third party

administrator responsible for setting up and administering Plaintiff's defined benefit plan. Defendant Clifton Lurkis (and Defendant Lurkis, Joyce & Bove LLP) was Plaintiff's divorce attorney.

Legal Standard

Cal. Code of Civil Procedure Section 437c(b)(1) provides that a Motion for Summary Judgment "shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." Under *Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, the party moving for summary judgment has the burden of production to make a prima facie showing that there is no triable issue of any material fact. The burden then shifts to the nonmoving party to make a prima facie showing that there is a triable issue of material fact.

"Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party." *Weiss v. People ex rel. Dep't of Transportation* (2020) 9 Cal.5th 840, 864 (citations omitted). Summary judgment "is drastic and should be used with caution in order that it may not become a substitute for existing methods in the determination of issues of fact." *Eagle Oil & Ref. Co. v. Prentice* (1942) 19 Cal.2d 553, 556. Ultimately, if the Court feels any uncertainty as to whether a grant of summary judgment is proper, "any doubts about the propriety of summary judgment must be resolved in favor of the opposing party." *Mateel Environmental J. Foundation v. Edmund A. Gray Co.* (2003) 115 Cal.App.4th 8, 17 (citations omitted).

Discussion

The evidence supporting Defendant's Separate Statement of Material Facts establishes a prima facie showing that there is no triable issue of material fact and Defendant Kristina Hillhouse is entitled to judgment as a matter of law. Perhaps oversimplified, Defendant Kristina Hillhouse's evidence is that she was a young, temporary unpaid intern that never took any of Plaintiff's money or was aware that anybody else (including her mom) wrongfully did. Those facts defeat all of Plaintiff's causes of action and theories. The burden therefore shifted to Plaintiff to show a triable issue of material fact.

Plaintiff does not come remotely close to meeting his burden. His opposition is based on his declaration, which has almost no evidentiary value, replete with purported factual assertions unsupported by any foundation. No admissible portion (and there is very little that is admissible) of Plaintiff's declaration creates a triable issue of material fact as to any cause of action or any legal theory.

Plaintiff argues that Defendant Kristina Hillhouse has not addressed "secondary liability theories" of aiding and abetting and conspiracy alleged in the 4th amended Complaint at paragraphs 11-13. Opp. at p. 2:1-6. Defendant responds that UMF No.'s 4-13 and 15 show that to the extent any tort was actually committed, Kristina did not provide substantial assistance nor give substantial encouragement. Reply at p. 3:14-16. Based on those facts, as to which Plaintiff has not demonstrated any triable issue of material fact, the secondary liability theories, to the extent they are legally viable, are also factually unsupported. Plaintiff's position that there is overwhelming evidence of Defendant Kristina Hillhouse's "fraud, conversion, breach of fiduciary duty – and constructive fraud -- and embezzlement" is absurd. Opp. at p. 2:7-9. Plaintiff basically speculates that because Kristina was Sarah's daughter and because Kristina (may have) benefitted from money that Sarah purportedly took, Kristina must have known and/or aided the alleged theft. His speculation is not evidence.

Defendant Kristina Hillhouse's Motion for Summary Judgment is accordingly GRANTED.

Procedural Noncompliance

It is of note that Defendant argues that the MSJ should be granted because Plaintiff's Opp. fails to comply with procedural requirements. While Plaintiff raises legitimate concerns, the Motion is not granted on this basis.

Collateral Estoppel/Special Benefit Doctrine

Defendant also argues that the MSJ should be granted based on collateral estoppel or pursuant to the Special Benefit Doctrine. The Motion is not granted based on either of these theories.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE 3

23-CIV-00926

CATHERINE RODRIGUEZ VS. NISSAN NORTH AMERICA, INC., ET AL

CATHERINE RODRIGUEZ
NISSAN NORTH AMERICA, INC.

ROGER KIRNOS
JASON M. RICHARDSON

PLAINTIFF'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Jacob Cutler and Knight Law Group to be relieved as counsel of record for plaintiff Catherine Rodriguez is denied without prejudice for lack of proof that the motion was properly served on plaintiff and all other parties who have appeared in the action. However, if counsel (provides notice) and appears and provides proof (that it has also filed in advance of the hearing) that plaintiff and all other parties who have appeared in the action received proper notice of today's hearing, the court will grant the motion.

The Proof of Service attached to the notice of motion indicates the moving papers were served electronically and by personal service. With respect to the electronic service, the POS indicates it was accomplished via the Case Anywhere Service System pursuant to a ruling in Sacramento Superior Court Case No. JCCP 4924. However, the record in this case does not indicate that it is part of the coordinated action.

To the extent the POS also indicates the moving papers were personally served, it states only that the declarant caused the documents to be sent to a court services provider to be personally served. There is no declaration from the person who actually accomplished the service indicating how and when it occurred.

Furthermore, the motion was originally set for hearing on January 25, 2027. It was advanced to the current date by an Order Shortening Time. To date, there is no proof that the Order Shortening Time was served on plaintiff.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
